

SAMPLE for a software demonstration. Not issued by or affiliated with Morgan & Morgan, and not legal advice. The two boxed clauses are the wording Rule 4-1.5(f)(4)(A) of the Rules Regulating The Florida Bar requires.

Contingency Fee Agreement

Personal injury · Prepared _____

This agreement is between _____ (“Client”) and Morgan & Morgan (“the Firm”).

1. WHAT THE FIRM WILL DO

Client hires the Firm to represent Client in Client’s claim for personal injuries, and any related property damage, arising from the incident on _____. The Firm will investigate the claim, deal with the insurance companies, negotiate, and, if the Firm and Client agree it is needed, file a lawsuit. This agreement does not cover appeals, workers’ compensation, or any other matter unless the Firm agrees in writing.

2. THE FIRM’S FEE

The Firm is paid only if there is a recovery. The fee is a percentage of the total (gross) amount recovered, before costs are deducted:

When the claim is resolved	Up to \$1 million	\$1 million to \$2 million	Over \$2 million
Before an answer is filed or arbitrators are demanded, or the time to do so expires	33⅓%	30%	20%
After that, through the entry of judgment	40%	30%	20%
If all defendants admit liability in their answers and ask for a trial only on damages	33⅓%	20%	15%

An additional 5% of any recovery applies once an appeal is begun, or once post-judgment relief or action is needed to collect on a judgment. These percentages do not exceed the limits in Rule 4-1.5(f)(4)(B) of the Rules Regulating The Florida Bar.

3. IF THERE IS NO RECOVERY

If there is no recovery, Client owes the Firm no fee and does not have to repay any costs the Firm advanced.

4. COSTS

The Firm may advance the costs of the claim, such as filing fees, charges for medical records, and expert fees. Advanced costs are repaid to the Firm from Client’s share of any recovery, after the fee is

calculated. Client may ask at any time how much has been spent and what further costs are expected.

5. MEDICAL BILLS, LIENS, AND THE CLOSING STATEMENT

Unpaid medical bills, liens, and reimbursement claims, for example from health insurers, Medicare, or Medicaid, are paid from Client's share of the recovery. Before any money is paid out, Client will receive a closing statement listing the amount recovered, every cost, the Firm's fee, and every payment, and must approve it.

6. SETTLEMENT

The Firm will tell Client about every settlement offer and will not settle the claim without Client's consent. Client makes the final decision to accept or reject any offer.

7. OTHER LAWYERS

The Firm intends to handle the claim with its own lawyers. If the Firm wants to involve a lawyer from another firm, it will tell Client first, and Client will be asked to sign a new agreement that includes that lawyer. Involving other lawyers will not increase the total fee.

8. NO GUARANTEE

The Firm has not promised any result. Any view the Firm gives about the claim is an opinion, not a guarantee.

9. CLIENT'S PART

Client agrees to give the Firm truthful information, to keep the Firm informed of changes in contact details and medical treatment, and not to discuss the claim with any insurance company without the Firm.

10. WHEN THIS AGREEMENT TAKES EFFECT

This agreement takes effect, and the Firm begins representing Client, only when it has been signed by both Client and an attorney of the Firm. Until then, the Firm has not agreed to represent Client.

Statement of client's rights · Rule 4-1.5(f)(4)(A)(i)

"The undersigned client has, before signing this contract, received and read the statement of client's rights and understands each of the rights set forth in it. The undersigned client has signed the statement and received a signed copy to refer to while being represented by the undersigned lawyer(s)."

Right to cancel · Rule 4-1.5(f)(4)(A)(ii)

“This contract may be cancelled by written notification to the lawyer at any time within 3 business days of the date the contract was signed, as shown below, and if cancelled the client is not obligated to pay any fees to the attorney for the work performed during that time. If the lawyer has advanced funds to others in representation of the client, the lawyer is entitled to be reimbursed for amounts that the lawyer has reasonably advanced on behalf of the client.”

Client signature

Attorney signature, for Morgan & Morgan

Client name

Attorney name

Date signed by client

Date signed by attorney